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Transcribed from HathiTrust, umn.31951d02280223t, 1952, ch. 591 (printed pp. 1035-1036), read in the browser on 1 October 2026. This is not the page the site serves: it refuses an automated request, so what is filed is the text layer the page carries, taken as it stands. Where the transcript and the printed page could differ the printed page governs; the annotation in paper/sources.bib says which passages were read against the page image.

Acts and Joint Resolutions of the General Assembly of Virginia, 1952, ch. 591 (printed pp. 1035-1036)

[seq 1039, printed p. 1035]

CH. 591] 1035 ACTS OF ASSEMBLY CHAPTER 591 An Act to amend and reenact § 15-351 of the Code of Virginia, relating to election and terms of office of members of county boards. Approved April 3, 1952 [H 650] Be it enacted by the General Assembly of Virginia: 1. That § 15-351 of the Code of Virginia be amended and reenacted as follows: * § 15-351. (a) Notwithstanding the provisions of §§ 15-350 and 15-360, if, in any county operating under the county manager plan provided for in this chapter, a majority of the qualified voters voting on the question submitted in the election held as provided in paragraph * (e) of * this section shall vote in favor of the election of the members of the county board and the filling of vacancies on the board as hereinafter provided in this section, then upon the entry of an order by the circuit court of the county, or a judge thereof in vacation, setting forth the results of such election, the members of the county board shall thereafter be elected and vacancies on the board shall be filled as provided in this section. * (b) Notwithstanding the provisions of paragraph (a), if a majority of the qualified voters voting in such election vote in favor of the election of the members of the county board as provided by paragraph * (f) hereof then upon the entry of an order by the circuit court of the county or a judge thereof in vacation, setting forth the results of the election, the members of the county board shall thereafter be elected as provided in paragraph * (f) hereof. (c) Each of such members shall take office on the first day of January after his election and shall hold office until his successor is elected and qualified. Thereafter at each regular November election there shall be elected one or more members of the county board to succeed the member or members whose terms expire on or before the first day of January next succeeding such election; the members so elected shall be elected for terms of four years each and shall take office on the first day of January next succeeding their election. (d) When any vacancy shall occur in the membership of the county board, the judge * of the circuit court of the county shall, if the term of the office wherein the vacancy exists shall continue for one year or more after the next succeeding regular November election, issue a writ of election to fill such vacancy, such election to be held at the next regular November election. The member so elected shall hold office for the unexpired term. * (e) * The election to determine whether the members of the county board shall be elected as provided in subsection (f) of this

section shall be called and held as follows: If a petition signed by two hundred or more qualified voters in any such county shall on or before the first day of August, nineteen hundred fifty-two, be filed with the circuit court of the county, or a judge thereof in vacation, asking that a referendum be held on such question, the court or judge shall, on or before the first day of September, nineteen hundred fifty-two, by an order entered of record, require the election officials of the county at the next regular election to be held in November, nineteen hundred fifty-two, to open a poll and take the sense of the qualified voters of the county on the questions as herein provided. The clerk of the county shall cause a notice of such election to be published in some newspaper, published or having a general circulation in the county, once a week for three consecutive weeks, and shall post a copy of such notice in the court

[seq 1040, printed p. 1036]

1036 [VA., 1952 ACTS OF ASSEMBLY house of the said county. The regular election officials of the county, at the time designated therein, shall open the polls at the various voting places in the county and conduct the election in such manner as is provided by law for other elections, in so far as the same is applicable. The election shall be by separate ballot, which shall be prepared by the electoral board and distributed to the various election precincts as in other elections. The ballots to be used shall be printed as follows: Shall the members of the county board be elected biennially for four year terms, as provided in subsection (f) of § 15-351 of the Code of Virginia? Yes No Shall the membership on the county board be increased from five to seven? Yes No The election shall in all respects be held as provided in § 24-141 of the Code of Virginia. (f) If the result of the election held as provided in paragraph (e) hereof be for the election of the members of the county board as provided in this paragraph then the provisions of this paragraph shall supercede all other provisions of this section and the members of the county board shall be elected as hereinafter set forth. (1) The successors to the members whose terms expire in nineteen hundred fifty-three and nineteen hundred fifty-five shall be elected for terms of three years; thereafter all such members shall be elected for four year terms in the November election of the years in which the terms expire; the terms of members so elected shall begin on January one of the year following their election. (2) Successors to the members whose terms expire in nineteen hundred fifty-four, nineteen hundred fifty-six and nineteen hundred fifty-eight shall be elected for terms of four years at the November election in such years, respectively; the terms of members so elected shall begin on the first day of January following their election. (3) Vacancies shall be filled as provided by subsection (d) hereof. (g) If at the election held as provided in paragraph (e) hereof a majority of the electors shall vote in favor of increasing the membership of the county board from five to seven, then at the election to be held in November nineteen hundred fifty-three there shall be elected two additional members of the board, for terms of three years. Upon the expiration of such terms their successors shall be elected for terms of four years to begin January one following their election. 2. An emergency exists and this act is in force from passage. CHAPTER 592 An Act to require licenses of and to impose a trailer tax upon the operation of trailer camps and trailer parks and the parking of trailers, and to

provide a penalty for violations. Approved April 3, 1952 Be it enacted by the General Assembly of Virginia: [? 654] 1. § 1. The governing body of any political subdivision in this State is authorized to levy, and to provide for the assessment and collection of, license taxes upon the operation of trailer camps and trailer parks and the parking of trailers.